

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**MOTION TO ABATE IN FULL AND OPPOSITION TO PLAINTIFFS'  
MOTION TO TAX ATTORNEYS' FEES AND COSTS**

Defendant, Marc Moszkowski, pro se, opposes Plaintiffs' "Motion to Tax Attorneys' Fees and Costs" and moves to abate the motion in its entirety, with no ruling on entitlement or amount, until the anticipated appeal is concluded and until the Court first decides Defendant's contractual advancement rights. No fees or non-ministerial costs should be taxed absent sworn, itemized proof and an evidentiary hearing.

**Procedural posture:** Final Judgment was filed Sept. 3, 2025.

Defendant filed a Rule 1.530 motion Sept. 8, 2025; the Court denied it by written order filed Sept. 29, 2025. Plaintiffs filed their fee/cost motion Oct. 3, 2025. Defendant intends to file a Notice of Appeal by Oct. 29, 2025.

## **1. Facial deficiency**

Rule 1.525 is a timing rule only. A fee movant must identify a legal basis (statute or contract/bylaw) and support the request with sworn, itemized billing records (reasonable hours × reasonable rate) and a verified cost memorandum. Plaintiffs cite only Rule 1.525 and provide no sworn, itemized proof. The motion should be denied without prejudice, or Plaintiffs ordered to file a compliant supplement before any hearing.

## **2. Abate in full**

To conserve resources and avoid inconsistent or duplicative proceedings while this case proceeds to appeal, the Court should hold the fee/cost motion in abeyance, with no entitlement ruling, until appellate disposition and until the Court adjudicates Defendant's advancement motion.

## **3. Hearing & evidentiary requirements (if ever reached)**

If the Court later reaches fees/costs, it should require sworn, itemized submissions, proper segregation of time to any fee-eligible claims, and set an evidentiary hearing with the opportunity for cross-examination before taxing anything.

**RELIEF REQUESTED.** Defendant respectfully asks the Court to:

**(A) ABATE IN FULL** Plaintiffs' fee/cost motion, with no ruling on entitlement or amount, until after appellate disposition and an advancement ruling; or, in the alternative,

**(B) DENY WITHOUT PREJUDICE** for failure to state a legal basis and provide sworn, itemized proof; and

**(C)** in all events, require sworn, itemized submissions and set an evidentiary hearing before any taxation.

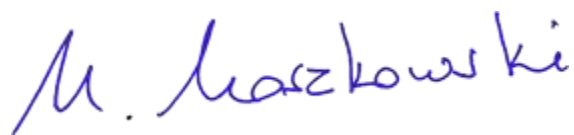
Respectfully submitted this 14<sup>th</sup> day of October, 2025

Marc Moszkowski, Pro Se

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Le Verdos

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### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 14<sup>th</sup> day of October, 2025, a copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record at their designated service email addresses (braden@lawpensacola.com).

*M. Marzowski*